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Liquor stores challenge blue law

■ BLUE LAW
Continued from Page B1

Evan T. Lawson, "Then the Legislature passes a law that takes business away from one and gives it to the other."

Passed in 1990, the law known as the "towns near the border exception" was designed to help Massachusetts liquor stores compete with their neighbors to the north, which permit Sunday alcohol sales. It was also intended to capture tax revenue for Massachusetts.

But Chisholm and other business owners contend the law has instead pitted Massachusetts package stores within the 10-mile area against those beyond it.

In addition, the law violates equal protection principles by allowing Sunday sales in some Massachusetts communities but not others, they argue.

Chisholm agreed to use his store as a test case and deliberately defy the law. After the ABCC suspended his license, he sued in Suffolk Superior Court and won. A judge ruled last August that the law was arbitrary and overturned the suspension. The ABCC appealed to the Supreme Judicial Court.

The state attorney general's office, which is defending the ABCC in the case, stands by the law.

"Wherever the Legislature draws lines, there's always some entity on the other side of the line that may not benefit," said Assistant Attorney General Mary Murphy-Hensley. "But as long as there is a greater public benefit that outweighs the interests of the private entity, then the statute . . . is constitutional."

But Lawson asks, "Why should businesses in Essex be hurt to benefit businesses in Ipswich? It makes no sense to me, and I hope it won't make any sense to the court, either."

RELIEF RALLY



GLOBE STAFF PHOTOS / KEVIN MACK



About 150 people cheered during a City Hall plaza rally yesterday calling for the creation of an independent state for Kosovo and a war criminal trial for Yugoslavian President Slobodan Milosevic. Boston Mayor Thomas M. Menino addressed the crowd, telling them that Boston stands with them as their relatives struggle to survive Serbian attacks in the Kosovo province in former Yugoslavia. "The people of Boston say 'no' to cruelty in the Balkans," Menino said to applause. "We say 'no more' to ethnic cleansing." The Islamic Society of Boston, which sponsored the rally, has set up Boston-Kosova Relief Fund. Donations can be made in care of FleetBank, P.O. Box 4018, Boston, 02211-4018.

Mass. rating drops to 47th nationwide in doctor discipline

■ MEDICAL BOARD
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Boards. She attributed part of the problem to the Legislature's decision to no longer appropriate $247,000 for the on-line physician profile system, forcing the board to absorb that out of its regular budget.

As a result, the board has had to reduce its complement of four investigators to the current 2.5 full-time equivalents, she said. At one point last year, the board had only one investigator, Wells said.

Daniel Grabauskas, director of the state Office of Consumer Affairs and Business Regulation, which oversees the board, said the slippage is "probably confirming many of the concerns that I know the governor and I have had."

In his proposed fiscal 2000 budget, Governor Paul Cellucci asked the Legislature for about $450,000 more for the Board of Registration in Medicine, to bring the total up to more than $3.8 million, including physician licensing fees, according to Grabauskas.

The Massachusetts board had been slowly improving in the early 1990s, rising from 46th in 1991 to 37th by 1994. Then the board began a decline, first to 40, then to 43, then to 45, and to 47 in 1998.

The Health Research Group does its annual ranking using statistics compiled by the Federation of State Medical Boards, which just sent out its data, in advance of its annual meeting later this month.

But while the federation refrains from ranking the boards, the Health Research Group takes the information and compares the states based on the number of serious disciplinary actions taken, which are defined as revocation, surrender or suspension of license, and probation or restrictions on practice.

Even without the ranking by state, however, the federation figures show that Massachusetts has slipped compared to itself over the last two years, based on a complicated composite index, according to Wells. Given the resource cutbacks, "It's not really a surprise to us," she said.



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SP 4/21/99

Black patrons complain of abuse at popular Randolph nightspot

■ VINCENT'S
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Night, has drawn scrutiny from town selectmen who suspended its liquor license due to alcohol-related incidents, and from the NAACP, which cites a "history" of problems there.

Most of the incidents occurred on Saturdays, the night most popular among area blacks.

Now, the matter is fueling speculation of racial insensitivity in Greater Boston's race-roded nightclub world, where would-be patrons can choose to party among a specific ethnic group by parsing carefully worded radio ads designed to draw homogeneous crowds on weekend nights.

Thus, Hip-Hop Night at Vincent's, patrons said, was black night.

The club's owner, Vincent Lombardo, who did not return telephone calls for comment, decided to keep it closed tonight, as it has been for the past two Saturdays, after selectmen said the club was the site of an alarmingly high number of liquor-related incidents – and arrests – last year.

The new theme for Saturday has not yet been announced.

Stephen Toomey, a selectman who called a hearing on a charge that Vincent's had served alcohol to minors, said that in 1998, police logged 131 calls ranging from underage drinking to disorderly conduct, while the total for all other liquor serving establishments in Randolph was 40.

In March, selectmen suspended the liquor license for three days. That sanction was pared down to one day after Lombardo said he'd close the club for three Saturdays, Toomey said.

He said that 75 percent of the incidents at Vincent's were reported on Saturdays, and that fewer problems have been reported on other nights, which include Latin and Caribbean themes. The club is open as often as four days each week.

Toomey, who said he and nearly every other selectman has observed Vincent's on Saturday nights, said the younger crowd may draw underage drinkers, unruly patrons – and police action.

But some blacks, such as LaFrazier, charge disparate treatment at the club, saying they encounter rude staffers or are roughed up by overzealous police on Saturday nights.

"I would like for the club to be closed down and for the Randolph police to suffer some consequences," she said, adding that she hopes to file a civil lawsuit.

When police carried her out of the club, LaFrazier said, she struggled and screamed, but soon was pinned to a low concrete wall by an officer's knee. Four witnesses said in affidavits that another officer clutched her hair in his fist and repeatedly slammed her head against the wall to keep her silent.

"One officer held my legs down and pressed all of his weight on my neck," LaFrazier said. "Another one pulled my arms back until I thought they were going to break."

LaFrazier spent the night in jail, charged with trespassing, assault on police officers, and for kicking out the window of the cruiser that took her to the police station for booking.

Barkhouse, Randolph's police chief, backs his officers.

"That's all baseless," he said. "She tried to kick cops in the groin area, so that's why they had to physically carry her out of the place." But he admitted he never saw affidavits, submitted by club patrons who LaFrazier didn't know, which corroborate much of her account.

The affidavits said police were "demeaning" to LaFrazier, used excessive force in "slamming her head into the concrete," and cursing at her and her friends as they tried to collect badge numbers or inquire why LaFrazier was being arrested.

"They're entitled to their opinion, but police only used the minimal amount of force necessary for the situation," he said.

LaFrazier pleaded guilty to some charges in Quincy District Court, and others were dropped. In November, the case was continued without a finding but she paid court costs and for damages to the cruiser.

Since then, LaFrazier's case has been the talk of black Boston-area Internet chat groups. Some members of Boston Blacks Online have called for a boycott while others relate horror stories of their own, ranging from rudeness to assault.

Clementi Lewis, 27, a Boston hair stylist, has a quarter-sized scar on his forehead from the beating he said he got after being grabbed by a Vincent's staffer in January. He spent two nights in jail on the weekend of his birthday.

"I paid money to get in so why were they trying to take me out without a reason?" he said. "I was all messed up."

Diane Clark, 27, was arrested at Vincent's in March of last year after she said a coat-check clerk gave her someone else's garment.

Management had her removed in handcuffs when she asked to stand near the coat check to see if her coat showed up.

"Vincent's staff is really abrasive," Clark said. "If you say anything, the next thing you know, you're dragged out."

Leonard Alkins, president of the Boston chapter of the NAACP, said that complaints about how Randolph police treat blacks and other minorities are on the rise. He said while he has heard bad rumors about Vincent's and the club's treatment of people of color, LaFrazier is the first to file a formal complaint.

"There have always been complaints of abuse and use of force by bouncers, and a history of police using excessive force whether at Vincent's or in the town itself as it relates to people of color," Alkins said.

Barkhouse said that the Hip-Hop night fills the place to capacity, so a few rowdy guests can spoil it for the 900 or so patrons the club holds.

But Alkins said that the complaints against police increase in frequency as more blacks settle in Boston-area suburbs. Alkins has appointed a committee to review LaFrazier's case and is searching for witnesses to the incident.

While she has not filed a complaint against the officers, LaFrazier has attempted to try the case in the court of public opinion. Sadly, she said, she had thought the club was a decent spot when she arrived and took in the decor at first glance.

Said LaFrazier, "It was a great, big club so I figured I'd have a good time and I was starting to when the bouncer grabbed me."

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